

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1936

By: Hall of the Senate

and

6 Caldwell (Trey) of the
7 House

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9
10 An Act relating to crimes and punishments; amending
11 Section 14, Chapter 366, O.S.L. 2024 (21 O.S. Supp.
12 2025, Section 20N), which relates to Class D1
13 offenses; adding certain offense; updating statutory
14 references; amending 21 O.S. 2021, Section 264, which
15 relates to false impersonation of peace officers;
16 modifying elements of certain offense; creating
17 felony offenses and providing penalties; amending 21
18 O.S. 2021, Section 1738, as amended by Section 1,
19 Chapter 133, O.S.L. 2023 (21 O.S. Supp. 2025, Section
20 1738), which relates to seizure and forfeiture
21 proceedings; broadening scope of allowable seizure;
22 updating statutory language; and providing an
23 effective date.

24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

25 SECTION 1. AMENDATORY Section 14, Chapter 366, O.S.L.
26 2024 (21 O.S. Supp. 2025, Section 20N), is amended to read as
27 follows:

1 Section 20N. A. ~~Upon the effective date of this act~~ On or
2 after January 1, 2026, Class D1 shall include the following criminal
3 offenses:

4 1. Public warehouse ~~and/or~~ or commodity stock fraud, as
5 provided for in Section 9-34 of Title 2 of the Oklahoma Statutes;

6 2. False issuance of warehouse receipt, as provided for in
7 Section 9-35 of Title 2 of the Oklahoma Statutes;

8 3. Misrepresentation of charter, as provided for in Section 9-
9 36 of Title 2 of the Oklahoma Statutes;

10 4. Tampering with anhydrous equipment, as provided for in
11 subsection A of Section 11-10 of Title 2 of the Oklahoma Statutes;

12 5. Willfully burn forest, grass, crops, or woodlands, as
13 provided for in Section 16-25 of Title 2 of the Oklahoma Statutes;

14 6. Willful and unlawful burning of forest, grass, croplands,
15 rangeland, or other wild lands by owner, as provided for in Section
16 16-28.1 of Title 2 of the Oklahoma Statutes;

17 7. Possession of incendiary device with the intent to burn, as
18 provided for in Section 16-34 of Title 2 of the Oklahoma Statutes;

19 8. Operate aircraft not registered with the Federal Aviation
20 Administration Office of Aircraft Registry or foreign country, as
21 provided for in subsection A of Section 258 of Title 3 of the
22 Oklahoma Statutes;

1 9. Supply false information in regard to aircraft ownership, as
2 provided for in subsection B of Section 258 of Title 3 of the
3 Oklahoma Statutes;

4 10. Concealing identity of aircraft, as provided for in
5 subsection C of Section 258 of Title 3 of the Oklahoma Statutes;

6 11. Destruction of registration or serial number on aircraft,
7 as provided for in subsection A of Section 259 of Title 3 of the
8 Oklahoma Statutes;

9 12. Destruction of registration or serial number on aircraft
10 with intent to conceal, as provided for in subsection B of Section
11 259 of Title 3 of the Oklahoma Statutes;

12 13. Sell, purchase, or possess aircraft with removed or
13 falsified identification number with intent to misrepresent the
14 identity of aircraft, as provided for in subsection D of Section 259
15 of Title 3 of the Oklahoma Statutes;

16 14. Operating aircraft under the influence of alcohol, second
17 or subsequent offense within ten (10) years, as provided for in
18 subsection A of Section 301 of Title 3 of the Oklahoma Statutes;

19 15. Operating aircraft under the influence of intoxicant,
20 second or subsequent offense with ten (10) years, as provided for in
21 subsection A of Section 301 of Title 3 of the Oklahoma Statutes;

22 16. Unauthorized use of aircraft, as provided for in subsection
23 A of Section 321 of Title 3 of the Oklahoma Statutes;

1 17. Charge fee for horse race without a license, as provided
2 for in Section 205 of Title 3A of the Oklahoma Statutes;

3 18. Pari-mutuel wagering without a license, as provided for in
4 subsection A of Section 208.4 of Title 3A of the Oklahoma Statutes;

5 19. Entering racehorse under false name, as provided for in
6 subsection A of Section 208.6 of Title 3A of the Oklahoma Statutes;

7 20. Entering racehorse without name being registered, as
8 provided for in subsection B of Section 208.6 of Title 3A of the
9 Oklahoma Statutes;

10 21. Using racing stimulating devices, as provided for in
11 Section 208.7 of Title 3A of the Oklahoma Statutes;

12 22. Racetrack bribery or ticket falsification, as provided for
13 in Section 208.8 of Title 3A of the Oklahoma Statutes;

14 23. Unauthorized wagering on horse racing, as provided for in
15 Section 208.9 of Title 3A of the Oklahoma Statutes;

16 24. Falsification of information on racehorse, as provided for
17 in Section 208.10 of Title 3A of the Oklahoma Statutes;

18 25. Administer a drug or medication without authorization to
19 horse prior to racing, as provided for in subsection C of Section
20 208.11 of Title 3A of the Oklahoma Statutes;

21 26. Violation of horse racing drug provisions, as provided for
22 in subsection D of Section 208.11 of Title 3A of the Oklahoma
23 Statutes;

1 27. Forging ~~and/or~~ or counterfeiting state lottery ticket, as
2 provided for in subsection A of Section 727 of Title 3A of the
3 Oklahoma Statutes;

4 28. Influence lottery win by fraud, as provided for in
5 subsection B of Section 727 of Title 3A of the Oklahoma Statutes;

6 29. Own dog that attacks and kills a person, as provided for in
7 subsection B of Section 42.4 of Title 4 of the Oklahoma Statutes;

8 30. Release dog on law enforcement officer, as provided for in
9 subsection C of Section 42.4 of Title 4 of the Oklahoma Statutes;

10 31. Pledging assets of bank as collateral, as provided in
11 Section 809 of Title 6 of the Oklahoma Statutes;

12 32. Unlawful compensation of bank officer, as provided for in
13 Section 1405 of Title 6 of the Oklahoma Statutes;

14 33. Receipt of deposits while insolvent, as provided for in
15 Section 1406 of Title 6 of the Oklahoma Statutes;

16 34. Unlawful service as bank officer or director, as provided
17 for in Section 1407 of Title 6 of the Oklahoma Statutes;

18 35. Serving as bank commissioner, administrative assistant, or
19 assistant banking commissioner with a felony conviction, as provided
20 for in Section 1408 of Title 6 of the Oklahoma Statutes;

21 36. Concealing bank transaction, as provided for in Section
22 1409 of Title 6 of the Oklahoma Statutes;

1 37. Improper maintenance of accounts or false or deceptive
2 entries and statements, as provided for in Section 1410 of Title 6
3 of the Oklahoma Statutes;

4 38. Payment of penalties and judgments against others, as
5 provided for in Section 1411 of Title 6 of the Oklahoma Statutes;

6 39. Embezzlement of bank funds, as provided for in Section 1412
7 of Title 6 of the Oklahoma Statutes;

8 40. Circulation of statement or representation for the purpose
9 of injuring any bank institution, as provided for in Section 1413 of
10 Title 6 of the Oklahoma Statutes;

11 41. Authorizing, executing, or ratifying a criminal offense, as
12 provided for in subsection A of Section 1414 of Title 6 of the
13 Oklahoma Statutes;

14 42. Violation of any lawful order of the Board or Commissioner,
15 as provided for in subsection C of Section 1414 of Title 6 of the
16 Oklahoma Statutes;

17 43. Bank advertising with confusingly similar name, as provided
18 for in subsection A of Section 1417 of Title 6 of the Oklahoma
19 Statutes;

20 44. Using shortened confusingly similar name for advertising,
21 as provided for in subsection B of Section 1417 of Title 6 of the
22 Oklahoma Statutes;

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1 45. Acquiring another bank but using former name, as provided
2 for in subsection C of Section 1417 of Title 6 of the Oklahoma
3 Statutes;

4 46. Non-banking business using confusingly similar name, as
5 provided for in subsection D of Section 1417 of Title 6 of the
6 Oklahoma Statutes;

7 47. Registered sex offender providing services in a child care
8 facility, as provided for in subsection F of Section 404.1 of Title
9 10 of the Oklahoma Statutes;

10 48. Failure to report child abuse, as provided for in
11 subsection C of Section 1-2-101 of Title 10A of the Oklahoma
12 Statutes;

13 49. Interception of wire, oral, or electronic communication, as
14 provided for in paragraph 1 of Section 176.3 of Title 13 of the
15 Oklahoma Statutes;

16 50. Using devices to intercept oral communication, as provided
17 for in paragraph 2 of Section 176.3 of Title 13 of the Oklahoma
18 Statutes;

19 51. Disclosing contents of wire, oral, or electronic
20 communication, as provided for in paragraph 3 of Section 176.3 of
21 Title 13 of the Oklahoma Statutes;

22 52. Using contents of wire, oral, or electronic communication,
23 as provided for in paragraph 4 of Section 176.3 of Title 13 of the
24 Oklahoma Statutes;

1 53. Removing, injuring, or obstructing telephone line, as
2 provided for in paragraph 5 of Section 176.3 of Title 13 of the
3 Oklahoma Statutes;

4 54. Carrying devices for interception of wire, oral, or
5 electronic communication, as provided for in paragraph 6 of Section
6 176.3 of Title 13 of the Oklahoma Statutes;

7 55. Making devices for interception of wire, oral, or
8 electronic communication, as provided for in paragraph 7 of Section
9 176.3 of Title 13 of the Oklahoma Statutes;

10 56. Using communication facility in committing felonies, as
11 provided for in paragraph 8 of Section 176.3 of Title 13 of the
12 Oklahoma Statutes;

13 57. Violation of the Oklahoma Consumer Protection Act, as
14 provided for in Section 753 of Title 15 of the Oklahoma Statutes;

15 58. Violation of the Home Repair Fraud Act, as provided for in
16 Section 765.3 of Title 15 of the Oklahoma Statutes;

17 59. Conduct closing-out sale without license, as provided for
18 in Section 767 of Title 15 of the Oklahoma Statutes;

19 60. Violation of the Unlawful Electronic Mail Act, as provided
20 for in Section 776.1 of Title 15 of the Oklahoma Statutes;

21 61. Violation of the Unlawful Electronic Mail Act for
22 commercial electronic mail, as provided for in Section 776.6 of
23 Title 15 of the Oklahoma Statutes;

1 62. Conceal or destroy corporation records, as provided for in
2 Section 16 of Title 17 of the Oklahoma Statutes;

3 63. Misapplication of funds, as provided for in Section 411 of
4 Title 18 of the Oklahoma Statutes;

5 64. Solicit funds to secure old age assistance by deception or
6 fraud, as provided for in Section 553.1 of Title 18 of the Oklahoma
7 Statutes;

8 65. Inspector, judge, or clerk refusing to extend or enforce
9 the right to sign and deliver the certificate of election votes, as
10 provided for in Section 90 of Title 19 of the Oklahoma Statutes;

11 66. Knowing and willful failure or refusal to perform duties,
12 as provided for in Section 91 of Title 19 of the Oklahoma Statutes;

13 67. County officer failing to make daily deposit, as provided
14 for in Section 682 of Title 19 of the Oklahoma Statutes;

15 68. Use of false or illegal voucher by county official, as
16 provided for in Section 686 of Title 19 of the Oklahoma Statutes;

17 69. Holding oneself out as law enforcement personnel as
18 provided in subsections A and B of Section 264 of this title;

19 70. Gift to influence legislator, as provided for in Section
20 318 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 ~~70.~~ 71. Legislator receiving payoff for employment of other, as
22 provided for in Section 321 of ~~Title 21 of the Oklahoma Statutes~~
23 this title;

1 ~~71.~~ 72. Lobbying legislature on contingency fee basis, as
2 provided for in Section 334 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~72.~~ 73. Furnishing public supplies for profit, as provided for
5 in subsection A of Section 355 of ~~Title 21 of the Oklahoma Statutes~~
6 this title;

7 ~~73.~~ 74. Purchase public supplies from business that employs
8 family member or spouse with more than five percent (5%) interest,
9 as provided for in subsection C of Section 355 of ~~Title 21 of the~~
10 ~~Oklahoma Statutes~~ this title;

11 ~~74.~~ 75. Make false claim against the state, as provided for in
12 subsection A of Section 358 of ~~Title 21 of the Oklahoma Statutes~~
13 this title;

14 ~~75.~~ 76. Bribing an officer, as provided for in Section 381 of
15 ~~Title 21 of the Oklahoma Statutes~~ this title;

16 ~~76.~~ 77. Bribing participant or official in athletic contest, as
17 provided for in Section 399 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;

19 ~~77.~~ 78. Engaging in pattern of criminal offenses, as provided
20 for in Section 425 of ~~Title 21 of the Oklahoma Statutes~~ this title;

21 ~~78.~~ 79. Escape from county or city jail, as provided for in
22 subsection A of Section 443 of ~~Title 21 of the Oklahoma Statutes~~
23 this title;

1 ~~79.~~ 80. Escape from the Department of Corrections or
2 alternative incarceration, as provided for in subsection B of
3 Section 443 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 ~~80.~~ 81. Escape from juvenile detention facility, as provided
5 for in subsection E of Section 443 of ~~Title 21 of the Oklahoma~~
6 ~~Statutes~~ this title;

7 ~~81.~~ 82. Unauthorized entry into penal institution or jail, as
8 provided for in Section 445 of ~~Title 21 of the Oklahoma Statutes~~
9 this title;

10 ~~82.~~ 83. Preparing false evidence, as provided for in Section
11 453 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 ~~83.~~ 84. Bribing witness to falsely testify, as provided for in
13 Section 456 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 ~~84.~~ 85. Larceny or destruction of records by clerk or officer,
15 as provided for in Section 461 of ~~Title 21 of the Oklahoma Statutes~~
16 this title;

17 ~~85.~~ 86. Larceny or destruction of records by person other than
18 officers, as provided for in Section 462 of ~~Title 21 of the Oklahoma~~
19 ~~Statutes~~ this title;

20 ~~86.~~ 87. Offer forged or false instruments for the record, as
21 provided for in Section 463 of ~~Title 21 of the Oklahoma Statutes~~
22 this title;

23 ~~87.~~ 88. Perjury, as provided for in Section 491 of ~~Title 21 of~~
24 ~~the Oklahoma Statutes~~ this title;

1 ~~88.~~ 89. Contradictory statements as perjury, as provided for in
2 Section 496 of ~~Title 21 of the Oklahoma Statutes~~ this title;
3 ~~89.~~ 90. Perjury by subornation, as provided for in Section 504
4 of ~~Title 21 of the Oklahoma Statutes~~ this title;
5 ~~90.~~ 91. Falsify public record, as provided for in Section 531
6 of ~~Title 21 of the Oklahoma Statutes~~ this title;
7 ~~91.~~ 92. Fortifying access point to place where felony is being
8 committed, as provided for in Section 540C of ~~Title 21 of the~~
9 ~~Oklahoma Statutes~~ this title;
10 ~~92.~~ 93. Compounding a crime, as provided for in Section 543 of
11 ~~Title 21 of the Oklahoma Statutes~~ this title;
12 ~~93.~~ 94. Substitute a child to deceive a parent or guardian, as
13 provided for in Section 579 of ~~Title 21 of the Oklahoma Statutes~~
14 this title;
15 ~~94.~~ 95. Record, listen to, or observe jury proceedings, as
16 provided for in Section 588 of ~~Title 21 of the Oklahoma Statutes~~
17 this title;
18 ~~95.~~ 96. Abuse, sexual abuse, or exploitation of a vulnerable
19 adult, as provided for in subsection A of Section 843.3 of ~~Title 21~~
20 ~~of the Oklahoma Statutes~~ this title;
21 ~~96.~~ 97. Neglect of a vulnerable adult, as provided for in
22 subsection B of Section 843.3 of ~~Title 21 of the Oklahoma Statutes~~
23 this title;
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1 ~~97.~~ 98. Procuring an abortion, as provided for in Section 861
2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 ~~98.~~ 99. Adultery, as provided for in Section 871 of ~~Title 21 of~~
4 ~~the Oklahoma Statutes~~ this title;

5 ~~99.~~ 100. Bigamy, as provided for in Section 881 of ~~Title 21 of~~
6 ~~the Oklahoma Statutes~~ this title;

7 ~~100.~~ 101. Knowingly marrying a bigamist, as provided for in
8 Section 884 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 ~~101.~~ 102. Confidence game by cards, as provided for in Section
10 954 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 ~~102.~~ 103. Dealing in gambling devices, as provided for in
12 Section 984 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 ~~103.~~ 104. Install communication of gambling information, as
14 provided for in Section 986 of ~~Title 21 of the Oklahoma Statutes~~
15 this title;

16 ~~104.~~ 105. Dissemination of gambling information, as provided
17 for in Section 987 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 ~~105.~~ 106. Conspiracy to violate gambling laws, as provided for
19 in Section 988 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 ~~106.~~ 107. Engaging in prostitution while HIV-infected, as
21 provided for in subsection B of Section 1031 of ~~Title 21 of the~~
22 ~~Oklahoma Statutes~~ this title;

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1 ~~107.~~ 108. Engage in or operate prostitution within one thousand
2 (1,000) feet of a school or church, as provided for in subsection D
3 of Section 1031 of ~~Title 21 of the Oklahoma Statutes~~ this title;
4 ~~108.~~ 109. Interactive computer service provider failing to
5 remove child pornography, third or subsequent offense, as provided
6 for in Section 1040.80 of ~~Title 21 of the Oklahoma Statutes~~ this
7 title;
8 ~~109.~~ 110. Gain or attempt to gain value from nonconsensual
9 dissemination of private sexual images, as provided for in
10 subsection G of Section 1040.13b of ~~Title 21 of the Oklahoma~~
11 ~~Statutes~~ this title;
12 ~~110.~~ 111. Sex offender entering safety zone around school, as
13 provided for in Section 1125 of ~~Title 21 of the Oklahoma Statutes~~
14 this title;
15 ~~111.~~ 112. Unlawful removal of dead body, as provided for in
16 Section 1161 of ~~Title 21 of the Oklahoma Statutes~~ this title;
17 ~~112.~~ 113. Purchasing or receiving dead body, as provided for in
18 Section 1162 of ~~Title 21 of the Oklahoma Statutes~~ this title;
19 ~~113.~~ 114. Using photographic, electronic, or video equipment in
20 clandestine manner, as provided for in subsection B of Section 1171
21 of ~~Title 21 of the Oklahoma Statutes~~ this title;
22 ~~114.~~ 115. Obscene, threatening, or harassing phone call, second
23 or subsequent offense, as provided for in Section 1172 of ~~Title 21~~
24 ~~of the Oklahoma Statutes~~ this title;

1 ~~115.~~ 116. Spreading infectious diseases, as provided for in
2 Section 1192 of ~~Title 21 of the Oklahoma Statutes~~ this title;
3 ~~116.~~ 117. Altering livestock appearance for exhibition, second
4 or subsequent offense, as provided for in Section 1229 of ~~Title 21~~
5 ~~of the Oklahoma Statutes~~ this title;
6 ~~117.~~ 118. Unlawfully transport hazardous waste, as provided for
7 in Section 1230.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;
8 ~~118.~~ 119. Unlawful waste management, as provided for in Section
9 1230.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;
10 ~~119.~~ 120. False statements and acts concerning permits and
11 waste, as provided for in Section 1230.5 of ~~Title 21 of the Oklahoma~~
12 ~~Statutes~~ this title;
13 ~~120.~~ 121. Unlawful disposal of hazardous waste, as provided for
14 in Section 1230.6 of ~~Title 21 of the Oklahoma Statutes~~ this title;
15 ~~121.~~ 122. Attempts to violate the Sabotage Prevention Act, as
16 provided for in Section 1265.4 of ~~Title 21 of the Oklahoma Statutes~~
17 this title;
18 ~~122.~~ 123. Carry weapon with intent to injure another, as
19 provided for in Section 1278 of ~~Title 21 of the Oklahoma Statutes~~
20 this title;
21 ~~123.~~ 124. Teaching, demonstrating, or training use of firearms
22 in furtherance of riot, as provided for in Section 1320.10 of ~~Title~~
23 ~~21 of the Oklahoma Statutes~~ this title;
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1 ~~124.~~ 125. Delivering fraudulent bill of lading, as provided for
2 in Section 1411 of ~~Title 21 of the Oklahoma Statutes~~ this title;
3 ~~125.~~ 126. Maintaining fraudulent warehouse receipts, as
4 provided for in Section 1412 of ~~Title 21 of the Oklahoma Statutes~~
5 this title;
6 ~~126.~~ 127. Issuing duplicate bills of lading or warehouse
7 receipts, as provided for in Section 1414 of ~~Title 21 of the~~
8 ~~Oklahoma Statutes~~ this title;
9 ~~127.~~ 128. Selling goods without consent of holder of bill of
10 lading, as provided for in Section 1415 of ~~Title 21 of the Oklahoma~~
11 ~~Statutes~~ this title;
12 ~~128.~~ 129. Unlawful delivery of goods, value from Two Thousand
13 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
14 (\$15,000.00), as provided for in paragraph 3 of Section 1416 of
15 ~~Title 21 of the Oklahoma Statutes~~ this title;
16 ~~129.~~ 130. Burglary in the third degree, as provided for in
17 subsection B of Section 1435 of ~~Title 21 of the Oklahoma Statutes~~
18 this title;
19 ~~130.~~ 131. Embezzlement of property, value from Two Thousand
20 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
21 (\$15,000.00), as provided for in subsection A of Section 1451 of
22 ~~Title 21 of the Oklahoma Statutes~~ this title;
23 ~~131.~~ 132. Extortion, as provided for in Section 1481 of ~~Title~~
24 ~~21 of the Oklahoma Statutes~~ this title;

1 ~~132.~~ 133. Extortion induced by threats, as provided for in
2 Section 1482 of ~~Title 21 of the Oklahoma Statutes~~ this title;
3 ~~133.~~ 134. Obtain signatures by extortion, as provided for in
4 Section 1485 of ~~Title 21 of the Oklahoma Statutes~~ this title;
5 ~~134.~~ 135. Extortion by threatening letter, as provided for in
6 Section 1486 of ~~Title 21 of the Oklahoma Statutes~~ this title;
7 ~~135.~~ 136. Blackmail, as provided for in Section 1488 of ~~Title~~
8 ~~21 of the Oklahoma Statutes~~ this title;
9 ~~136.~~ 137. Defrauding hotel, inn, or restaurant, value of One
10 Thousand Dollars (\$1,000.00) or more, as provided for in Section
11 1503 of ~~Title 21 of the Oklahoma Statutes~~ this title;
12 ~~137.~~ 138. Renting motor vehicle with bogus check, value of One
13 Thousand Dollars (\$1,000.00) or more, as provided for in Section
14 1521 of ~~Title 21 of the Oklahoma Statutes~~ this title;
15 ~~138.~~ 139. Receive money or property by impersonating another,
16 value from Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen
17 Thousand Dollars (\$15,000.00), as provided for in paragraph 3 of
18 Section 1532 of ~~Title 21 of the Oklahoma Statutes~~ this title;
19 ~~139.~~ 140. False use of "State Police" with intent to
20 communicate policing authority, and another is injured, defrauded,
21 harassed, or vexed, as provided for in subsection G of Section 1533
22 of ~~Title 21 of the Oklahoma Statutes~~ this title;
23 ~~140.~~ 141. Identity theft, as provided for in Section 1533.1 of
24 ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~141.~~ 142. Felony value - false pretense, bogus check, con game,
2 valued from Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen
3 Thousand Dollars (\$15,000.00), as provided for in subsection A of
4 Section 1541.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5 ~~142.~~ 143. Two or more false or bogus checks, valued from Two
6 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
7 Dollars (\$15,000.00), as provided for in subsection A of Section
8 1541.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 ~~143.~~ 144. Obtaining money or property with false negotiable
10 paper, as provided for in Section 1544 of ~~Title 21 of the Oklahoma~~
11 ~~Statutes~~ this title;

12 ~~144.~~ 145. Signs credit or debit card with intent to defraud, as
13 provided for in subsection ~~(a)~~ A of Section 1550.28 of ~~Title 21 of~~
14 ~~the Oklahoma Statutes~~ this title;

15 ~~145.~~ 146. Possess credit or debit card of another with intent
16 to defraud, as provided for in subsection ~~(b)~~ B of Section 1550.28
17 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 ~~146.~~ 147. Possessing incomplete credit cards with intent to
19 complete, as provided for in Section 1550.31 of ~~Title 21 of the~~
20 ~~Oklahoma Statutes~~ this title;

21 ~~147.~~ 148. Possess firearm with altered ID during commission of
22 a felony, as provided for in subsection A of Section 1550 of ~~Title~~
23 ~~21 of the Oklahoma Statutes~~ this title;

1 ~~148.~~ 149. Make, sell, or display false identification for
2 felony purposes or to mislead police officer, as provided for in
3 subsection C of Section 1550.41 of ~~Title 21 of the Oklahoma Statutes~~
4 this title;

5 ~~149.~~ 150. Forgery of state, public, court, or corporate seals,
6 as provided for in Section 1571 of ~~Title 21 of the Oklahoma Statutes~~
7 this title;

8 ~~150.~~ 151. Forgery of records, as provided for in Section 1572
9 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 ~~151.~~ 152. Making false entry in records, as provided for in
11 Section 1573 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 ~~152.~~ 153. Forgery of certification or acknowledgement of
13 conveyance, as provided for in Section 1574 of ~~Title 21 of the~~
14 ~~Oklahoma Statutes~~ this title;

15 ~~153.~~ 154. Forgery II / Forgery III, valued from Two Thousand
16 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
17 (\$15,000.00), as provided for in subsection A of Section 1577 of
18 ~~Title 21 of the Oklahoma Statutes~~ this title;

19 ~~154.~~ 155. Possession of forged evidence of debt, valued from
20 Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
21 Dollars (\$15,000.00), as provided for in subsection A of Section
22 1578 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23 ~~155.~~ 156. Possession of other forged instrument, valued from
24 Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand

1 Dollars (\$15,000.00), as provided for in subsection A of Section
2 1579 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 ~~156.~~ 157. Issuing spurious or false certificates of stock, as
4 provided for in Section 1580 of ~~Title 21 of the Oklahoma Statutes~~
5 this title;

6 ~~157.~~ 158. Reissuing canceled certificates of stock, as provided
7 for in Section 1581 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 ~~158.~~ 159. Issuing or pledging false evidence of debt, as
9 provided for in Section 1582 of ~~Title 21 of the Oklahoma Statutes~~
10 this title;

11 ~~159.~~ 160. Counterfeiting coin, as provided for in Section 1583
12 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 ~~160.~~ 161. Counterfeiting coin for exportation, as provided for
14 in Section 1584 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15 ~~161.~~ 162. Forging process of court or title to property, as
16 provided for in Section 1585 of ~~Title 21 of the Oklahoma Statutes~~
17 this title;

18 ~~162.~~ 163. Making false entries in public book, as provided for
19 in Section 1586 of ~~Title 21 of the Oklahoma Statutes~~ this title;

20 ~~163.~~ 164. Forging tickets of passage, as provided for in
21 Section 1587 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22 ~~164.~~ 165. Forging postage stamps, as provided for in Section
23 1588 of ~~Title 21 of the Oklahoma Statutes~~ this title;

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1 ~~165.~~ 166. Falsification of corporate records, as provided for
2 in Section 1589 of ~~Title 21 of the Oklahoma Statutes~~ this title;
3 ~~166.~~ 167. Employee making false entries, as provided for in
4 Section 1590 of ~~Title 21 of the Oklahoma Statutes~~ this title;
5 ~~167.~~ 168. Possessing counterfeit coin with intent to circulate,
6 as provided for in Section 1591 of ~~Title 21 of the Oklahoma Statutes~~
7 this title;
8 ~~168.~~ 169. Uttering forged instruments, value from Two Thousand
9 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
10 (\$15,000.00), as provided for in subsection A of Section 1592 of
11 ~~Title 21 of the Oklahoma Statutes~~ this title;
12 ~~169.~~ 170. Falsely procuring another's signature, as provided
13 for in Section 1593 of ~~Title 21 of the Oklahoma Statutes~~ this title;
14 ~~170.~~ 171. Utter signature of another with same name, as
15 provided for in Section 1622 of ~~Title 21 of the Oklahoma Statutes~~
16 this title;
17 ~~171.~~ 172. Uttering one's endorsement as another's, as provided
18 for in Section 1623 of ~~Title 21 of the Oklahoma Statutes~~ this title;
19 ~~172.~~ 173. Erasure or alterations with intent to defraud, as
20 provided for in Section 1624 of ~~Title 21 of the Oklahoma Statutes~~
21 this title;
22 ~~173.~~ 174. Sign fictitious name as officer of corporation, as
23 provided for in Section 1626 of ~~Title 21 of the Oklahoma Statutes~~
24 this title;

1 ~~174.~~ 175. Fraudulent insolvency of corporation, as provided for
2 in Section 1639 of ~~Title 21 of the Oklahoma Statutes~~ this title;
3 ~~175.~~ 176. Workers' compensation fraud, as provided for in
4 Section 1663 of ~~Title 21 of the Oklahoma Statutes~~ this title;
5 ~~176.~~ 177. Willfully poisoning animal, as provided for in
6 Section 1681 of ~~Title 21 of the Oklahoma Statutes~~ this title;
7 ~~177.~~ 178. Larceny of lost property, value from Two Thousand
8 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
9 (\$15,000.00), as provided for in paragraph 3 of Section 1702 of
10 ~~Title 21 of the Oklahoma Statutes~~ this title;
11 ~~178.~~ 179. Grand larceny, value from Two Thousand Five Hundred
12 Dollars (\$2,500.00) to Fifteen Thousand Dollars (\$15,000.00), as
13 provided for in subsection A of Section 1705 of ~~Title 21 of the~~
14 ~~Oklahoma Statutes~~ this title;
15 ~~179.~~ 180. Larceny of written instrument, as provided for in
16 Section 1709 of ~~Title 21 of the Oklahoma Statutes~~ this title;
17 ~~180.~~ 181. Receive, possess, or conceal stolen property, value
18 from Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen
19 Thousand Dollars (\$15,000.00), as provided for in subsection A of
20 Section 1713 of ~~Title 21 of the Oklahoma Statutes~~ this title;
21 ~~181.~~ 182. Bringing stolen property into state, value from Two
22 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
23 Dollars (\$15,000.00), as provided for in Section 1715 of ~~Title 21 of~~
24 ~~the Oklahoma Statutes~~ this title;

1 ~~182.~~ 183. Larceny of dogs, as provided for in Section 1718 of
2 ~~Title 21 of the Oklahoma Statutes~~ this title;

3 ~~183.~~ 184. Larceny of or receiving stolen fowls, as provided for
4 in Section 1719 of ~~Title 21 of the Oklahoma Statutes~~ this title;

5 ~~184.~~ 185. Larceny of domesticated fish or game, value One
6 Thousand Dollars (\$1,000.00) or more, as provided for in Section
7 1719.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 ~~185.~~ 186. Larceny of auto, aircraft, or other motor vehicle,
9 value less than Fifty Thousand Dollars (\$50,000.00), as provided for
10 in Section 1720 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 ~~186.~~ 187. Larceny from building or house, as provided for in
12 Section 1723 of ~~Title 21 of the Oklahoma Statutes~~ this title;

13 ~~187.~~ 188. Possession of mercury, as provided for in Section
14 1726 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15 ~~188.~~ 189. Entering with intent to steal copper, as provided for
16 in Section 1727 of ~~Title 21 of the Oklahoma Statutes~~ this title;

17 ~~189.~~ 190. Possessing, receiving, or transporting stolen copper,
18 as provided for in Section 1728 of ~~Title 21 of the Oklahoma Statutes~~
19 this title;

20 ~~190.~~ 191. Larceny of merchandise from retailer, value from Two
21 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
22 Dollars (\$15,000.00), as provided for in subsection A of Section
23 1731 of ~~Title 21 of the Oklahoma Statutes~~ this title;

24

1 ~~191.~~ 192. Larceny of trade secrets, value from Two Thousand
2 Five Hundred Dollars (\$2,500.00) to Fifteen Thousand Dollars
3 (\$15,000.00), as provided for in Section 1732 of ~~Title 21 of the~~
4 ~~Oklahoma Statutes~~ this title;

5 ~~192.~~ 193. Procuring, selling, or receiving telephone records by
6 fraud (single telephone record), as provided for in subsection A of
7 Section 1742.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 ~~193.~~ 194. Injury to or obstruction of railroad, as provided for
9 in Section 1751 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 ~~194.~~ 195. Interfering with railroad, as provided for in Section
11 1752.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 ~~195.~~ 196. Possess, use, manufacture, or threaten to use
13 incendiary device or explosives without injury, as provided for in
14 Section 1767.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

15 ~~196.~~ 197. Removing or injuring piles securing bank or dam, as
16 provided for in Section 1777 of ~~Title 21 of the Oklahoma Statutes~~
17 this title;

18 ~~197.~~ 198. Maliciously injuring written instrument, value from
19 Two Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
20 Dollars (\$15,000.00), as provided for in Section 1779 of ~~Title 21 of~~
21 ~~the Oklahoma Statutes~~ this title;

22 ~~198.~~ 199. Place hard object or inflammable object in grain or
23 cotton, as provided for in Section 1837 of ~~Title 21 of the Oklahoma~~
24 ~~Statutes~~ this title;

1 ~~199.~~ 200. Selling five or more unlawful telecommunication
2 devices within six (6) months, as provided for in subsection B of
3 Section 1873 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 ~~200.~~ 201. Manufacturing five or more unlawful
5 telecommunications devices within six (6) months, as provided for in
6 subsection B of Section 1874 of ~~Title 21 of the Oklahoma Statutes~~
7 this title;

8 ~~201.~~ 202. Unauthorized removal of baggage or cargo from bus or
9 terminal, as provided for in Section 1904 of ~~Title 21 of the~~
10 ~~Oklahoma Statutes~~ this title;

11 ~~202.~~ 203. Access computer system or network with unlawful
12 intent, as provided for in Section 1958 of ~~Title 21 of the Oklahoma~~
13 ~~Statutes~~ this title;

14 ~~203.~~ 204. Reproduction of sound recording without consent, one
15 hundred ~~(100)~~ or more articles, as provided for in Section 1976 of
16 ~~Title 21 of the Oklahoma Statutes~~ this title;

17 ~~204.~~ 205. Unlawfully sell sound recordings, as provided for in
18 Section 1977 of ~~Title 21 of the Oklahoma Statutes~~ this title;

19 ~~205.~~ 206. Broadcast or live recording for sale without consent,
20 as provided for in Section 1978 of ~~Title 21 of the Oklahoma Statutes~~
21 this title;

22 ~~206.~~ 207. Rent or sell articles without true name of
23 manufacturer, as provided for in Section 1979 of ~~Title 21 of the~~
24 ~~Oklahoma Statutes~~ this title;

1 ~~207.~~ 208. Counterfeiting recording or article label, as
2 provided for in Section 1980 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~208.~~ 209. Violation of Trademark Anti-Counterfeiting Act, as
5 provided for in Section 1990.2 of ~~Title 21 of the Oklahoma Statutes~~
6 this title;

7 ~~209.~~ 210. Tampering with security equipment, as provided for in
8 Section 1993 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 ~~210.~~ 211. Sex offender engaging in ice cream truck vending, as
10 provided for in Section 2100.1 of ~~Title 21 of the Oklahoma Statutes~~
11 this title;

12 ~~211.~~ 212. Protective order violation, second or subsequent
13 offense, as provided for in subsection A of Section 60.6 of Title 22
14 of the Oklahoma Statutes;

15 ~~212.~~ 213. Protective order violation resulting in physical
16 injury, as provided for in subsection B of Section 60.6 of Title 22
17 of the Oklahoma Statutes;

18 ~~213.~~ 214. Disposal of seized liquor by officer, as provided for
19 in Section 1263 of Title 22 of the Oklahoma Statutes;

20 ~~214.~~ 215. False affidavits, as provided for in Section 1264 of
21 Title 22 of the Oklahoma Statutes;

22 ~~215.~~ 216. Interfering with voting machine, as provided for in
23 Section 9-118 of Title 26 of the Oklahoma Statutes;

1 ~~216.~~ 217. Voting illegally, as provided for in Section 16-102
2 of Title 26 of the Oklahoma Statutes;
3 ~~217.~~ 218. Removing ballot from or carrying ballot into polling
4 place, as provided for in Section 16-102.1 of Title 26 of the
5 Oklahoma Statutes;
6 ~~218.~~ 219. False application for an absentee ballot, as provided
7 for in Section 16-102.2 of Title 26 of the Oklahoma Statutes;
8 ~~219.~~ 220. False affidavit in voting registration, as provided
9 for in Section 16-103 of Title 26 of the Oklahoma Statutes;
10 ~~220.~~ 221. Causing unqualified persons to be invalidly
11 registered, as provided for in Section 16-103.1 of Title 26 of the
12 Oklahoma Statutes;
13 ~~221.~~ 222. False notarization of absentee ballot, as provided
14 for in Section 16-104 of Title 26 of the Oklahoma Statutes;
15 ~~222.~~ 223. Perpetrate fraud or theft to affect election, as
16 provided for in Section 16-105 of Title 26 of the Oklahoma Statutes;
17 ~~223.~~ 224. Bribes to influence votes, as provided for in Section
18 16-106 of Title 26 of the Oklahoma Statutes;
19 ~~224.~~ 225. Offer bribe to withdraw as candidate, as provided for
20 in Section 16-107 of Title 26 of the Oklahoma Statutes;
21 ~~225.~~ 226. Solicit or accept bribe for withdrawal of candidacy,
22 as provided for in Section 16-108 of Title 26 of the Oklahoma
23 Statutes;
24

1 ~~226.~~ 227. Prevent person from registering to vote or voting, as
2 provided for in Section 16-109 of Title 26 of the Oklahoma Statutes;
3 ~~227.~~ 228. Printing or possession of ballots illegally, as
4 provided for in Section 16-120 of Title 26 of the Oklahoma Statutes;
5 ~~228.~~ 229. Violation of the Oklahoma Pollutant Discharge
6 Elimination System Act, as provided for in subsection G of Section
7 2-6-206 of Title 27A of the Oklahoma Statutes;
8 ~~229.~~ 230. Falsely state information to the Department of
9 Environmental Quality, as provided for in Section 2-7-109 of Title
10 27A of the Oklahoma Statutes;
11 ~~230.~~ 231. Falsify information on permit application for
12 Oklahoma Solid Waste Management Act, as provided for in Section 2-
13 10-302 of Title 27A of the Oklahoma Statutes;
14 ~~231.~~ 232. Violation of use of solid waste disposal sites, as
15 provided for in Section 2-10-801 of Title 27A of the Oklahoma
16 Statutes;
17 ~~232.~~ 233. Filing false sale with Insurance Commissioner, as
18 provided for in Section 311.1 of Title 36 of the Oklahoma Statutes;
19 ~~233.~~ 234. Selling insurance with revoked or suspended license,
20 as provided for in subsection A of Section 1435.26 of Title 36 of
21 the Oklahoma Statutes;
22 ~~234.~~ 235. Aiding or conspiring with a person whose insurance
23 license is revoked or suspended, as provided for in subsection B of
24 Section 1435.26 of Title 36 of the Oklahoma Statutes;

1 ~~235.~~ 236. False statements, reports, or filings with intent to
2 deceive Insurance Commissioner, as provided for in subsection E of
3 Section 1643 of Title 36 of the Oklahoma Statutes;

4 ~~236.~~ 237. Violation of the Viatical Settlements Act of 2008,
5 value from Five Hundred Dollars (\$500.00) to Two Thousand Five
6 Hundred Dollars (\$2,500.00), as provided for in subsection F of
7 Section 4055.14 of Title 36 of the Oklahoma Statutes;

8 ~~237.~~ 238. Violation of prepaid funeral provisions, as provided
9 for in Section 6130 of Title 36 of the Oklahoma Statutes;

10 ~~238.~~ 239. Out-of-state retailer shipping alcoholic beverages
11 into state, as provided for in Section 3-101 of Title 37A of the
12 Oklahoma Statutes;

13 ~~239.~~ 240. Permit invitee under twenty-one (21) to possess or
14 consume alcohol, as provided for in subsection A of Section 6-101 of
15 Title 37A of the Oklahoma Statutes;

16 ~~240.~~ 241. Permit invitee under twenty-one (21) to possess or
17 consume alcohol resulting in great bodily injury or death, as
18 provided for in subsection C of Section 6-101 of Title 37A of the
19 Oklahoma Statutes;

20 ~~241.~~ 242. Sale of alcoholic beverages outside of authorized day
21 or hours, as provided for in Section 6-123 of Title 37A of the
22 Oklahoma Statutes;

1 ~~242.~~ 243. Disclosing confidential information concerning
2 violation of Employment Security Act of 1980, as provided for in
3 Section 4-508 of Title 40 of the Oklahoma Statutes;
4 ~~243.~~ 244. Hiring armed guards without permit, as provided for
5 in Section 169 of Title 40 of the Oklahoma Statutes;
6 ~~244.~~ 245. Causing employee death by commanding to enter steam
7 boiler, as provided for in Section 183 of Title 40 of the Oklahoma
8 Statutes;
9 ~~245.~~ 246. False statement about lien by contractor, as provided
10 for in Section 142.4 of Title 42 of the Oklahoma Statutes;
11 ~~246.~~ 247. Mechanics liens/embezzlement, valued from Two
12 Thousand Five Hundred Dollars (\$2,500.00) to Fifteen Thousand
13 Dollars (\$15,000.00), as provided for in Section 142.6 of Title 42
14 of the Oklahoma Statutes;
15 ~~247.~~ 248. Marrying prohibited persons, as provided for in
16 Section 14 of Title 43 of the Oklahoma Statutes;
17 ~~248.~~ 249. Bigamy and remarriage, as provided for in Section 123
18 of Title 43 of the Oklahoma Statutes;
19 ~~249.~~ 250. Mistreatment of mental health patient, as provided
20 for in Section 2-219 of Title 43A of the Oklahoma Statutes;
21 ~~250.~~ 251. Violation of opioid substitution treatment program,
22 as provided for in Section 3-601 of Title 43A of the Oklahoma
23 Statutes;
24

1 ~~251.~~ 252. Coerce another to execute a declaration of revocation
2 of an advanced directive, as provided for in subsection D of Section
3 11-113 of Title 43A of the Oklahoma Statutes;

4 ~~252.~~ 253. Unauthorized use of implement of husbandry, as
5 provided for in subsection B of Section 4-102 of Title 47 of the
6 Oklahoma Statutes;

7 ~~253.~~ 254. Receive, possess, or conceal implement of husbandry,
8 as provided for in subsection B of Section 4-103 of Title 47 of the
9 Oklahoma Statutes;

10 ~~254.~~ 255. Removed, falsified, or unauthorized identification,
11 as provided for in subsection A of Section 4-107 of Title 47 of the
12 Oklahoma Statutes;

13 ~~255.~~ 256. Buy, receive, possess, or sell motor vehicle with VIN
14 removed or defaced with intent to conceal, as provided for in
15 subsection C of Section 4-107 of Title 47 of the Oklahoma Statutes;

16 ~~256.~~ 257. Destroying, removing, altering, covering, or
17 counterfeiting trim tag plates, as provided for in Section 4-107a of
18 Title 47 of the Oklahoma Statutes;

19 ~~257.~~ 258. Misuse of manufactured home certificate of title, as
20 provided for in subsection B of Section 4-110 of Title 47 of the
21 Oklahoma Statutes;

22 ~~258.~~ 259. Alter manufactured home certificate of title, as
23 provided for in subsection B of Section 4-110 of Title 47 of the
24 Oklahoma Statutes;

1 ~~259.~~ 260. Remove receipt with intent to misrepresent payment of
2 tax or fees, as provided for in subsection B of Section 4-110 of
3 Title 47 of the Oklahoma Statutes;

4 ~~260.~~ 261. Purchase registration receipt on assigned certificate
5 of title, as provided for in subsection B of Section 4-110 of Title
6 47 of the Oklahoma Statutes;

7 ~~261.~~ 262. Misuse of forged, counterfeit, or suspended driver
8 license, as provided for in Section 6-301 of Title 47 of the
9 Oklahoma Statutes;

10 ~~262.~~ 263. Perjury through false affidavit, as provided for in
11 Section 6-302 of Title 47 of the Oklahoma Statutes;

12 ~~263.~~ 264. Interference with traffic control device resulting in
13 injury or death, as provided for in subsection B of Section 11-207
14 of Title 47 of the Oklahoma Statutes;

15 ~~264.~~ 265. Buy, sell, or dispose vehicle with altered VIN, chop
16 shop, as provided for in subsection C of Section 1503 of Title 47 of
17 the Oklahoma Statutes;

18 ~~265.~~ 266. Attempt to violate chop shop laws, as provided for in
19 subsection D of Section 1503 of Title 47 of the Oklahoma Statutes;

20 ~~266.~~ 267. Perjury before the Corporation Commission, as
21 provided for in Section 108 of Title 52 of the Oklahoma Statutes;

22 ~~267.~~ 268. Delay probation duties of the Corporation Commission
23 with use or attempted use of firearms, as provided for in Section
24 114 of Title 52 of the Oklahoma Statutes;

1 ~~268.~~ 269. Conspiracy to violate Oklahoma Oil and Gas
2 Conservation Act, as provided for in Section 115 of Title 52 of the
3 Oklahoma Statutes;
4 ~~269.~~ 270. Corruption of Corporation Commission, as provided for
5 in Section 117 of Title 52 of the Oklahoma Statutes;
6 ~~270.~~ 271. Misappropriation of gas, as provided for in Section
7 235 of Title 52 of the Oklahoma Statutes;
8 ~~271.~~ 272. Falsification of application for emergency relief, as
9 provided for in Section 26.18 of Title 56 of the Oklahoma Statutes;
10 ~~272.~~ 273. Medicaid fraud, as provided for in Section 1005 of
11 Title 56 of the Oklahoma Statutes;
12 ~~273.~~ 274. Fraudulently obtaining or receiving assistance, value
13 of Five Thousand Dollars (\$5,000.00) or more, as provided for in
14 Section 1005.1 of Title 56 of the Oklahoma Statutes;
15 ~~274.~~ 275. Carry contraband into jail or prison, as provided for
16 in subsection B of Section 21 of Title 57 of the Oklahoma Statutes;
17 ~~275.~~ 276. Possess cell phone in jail or prison, as provided for
18 in subsection E of Section 21 of Title 57 of the Oklahoma Statutes;
19 ~~276.~~ 277. Jail employee receiving compensation from inmate,
20 value of Five Hundred Dollars (\$500.00) or more, as provided for in
21 Section 22 of Title 57 of the Oklahoma Statutes;
22 ~~277.~~ 278. Use of convict labor on private property, as provided
23 for in Section 222 of Title 57 of the Oklahoma Statutes;
24

1 ~~278.~~ 279. Failure to comply with Mary Rippy Violent Crime
2 Offenders Registration Act, as provided for in Section 599 of Title
3 57 of the Oklahoma Statutes;

4 ~~279.~~ 280. Practicing dentistry without a license, as provided
5 for in subsection B of Section 328.49 of Title 59 of the Oklahoma
6 Statutes;

7 ~~280.~~ 281. Giving false information to obtain license, as
8 provided for in subsection B of Section 328.49 of Title 59 of the
9 Oklahoma Statutes;

10 ~~281.~~ 282. Impersonating a pharmacist, as provided for in
11 Section 353.17A of Title 59 of the Oklahoma Statutes;

12 ~~282.~~ 283. Alteration of prescription or unlawful dispensing of
13 drugs, second violation, as provided for in Section 353.24 of Title
14 59 of the Oklahoma Statutes;

15 ~~283.~~ 284. False representation in procuring license under the
16 Oklahoma Pharmacy Act, as provided for in subsection B of Section
17 353.25 of Title 59 of the Oklahoma Statutes;

18 ~~284.~~ 285. Cremation without license and permit, as provided for
19 in Section 396.33 of Title 59 of the Oklahoma Statutes;

20 ~~285.~~ 286. Practicing medicine without a license, as provided
21 for in Section 491 of Title 59 of the Oklahoma Statutes;

22 ~~286.~~ 287. Violation of the Oklahoma Osteopathic Medicine Act,
23 as provided for in Section 638 of Title 59 of the Oklahoma Statutes;

24

1 ~~287.~~ 288. Acting as building inspector without a license, as
2 provided for in Section 1044 of Title 59 of the Oklahoma Statutes;

3 ~~288.~~ 289. Affidavit as to undertaking, as provided for in
4 Section 1322 of Title 59 of the Oklahoma Statutes;

5 ~~289.~~ 290. Bail jumping, as provided for in Section 1335 of
6 Title 59 of the Oklahoma Statutes;

7 ~~290.~~ 291. False declaration of ownership in pawn shop, value of
8 One Thousand Dollars (\$1,000.00) or more, if property is firearms,
9 or was acquired through robbery or burglary, as provided for in
10 subsection C of Section 1512 of Title 59 of the Oklahoma Statutes;

11 ~~291.~~ 292. Violation of Oklahoma Security Guard and Private
12 Investigator Act, as provided for in subsection B of Section 1750.11
13 of Title 59 of the Oklahoma Statutes;

14 ~~292.~~ 293. Collusion among bidders, as provided for in Section
15 115 of Title 61 of the Oklahoma Statutes;

16 ~~293.~~ 294. Disclosure of terms of bids, as provided for in
17 Section 116 of Title 61 of the Oklahoma Statutes;

18 ~~294.~~ 295. False or illegal voucher by public official, as
19 provided for in Section 81 of Title 62 of the Oklahoma Statutes;

20 ~~295.~~ 296. Use of facsimile signature or seal with intent to
21 defraud, as provided for in Section 604 of Title 62 of the Oklahoma
22 Statutes;

1 ~~296.~~ 297. Distribution of controlled substance, possession with
2 intent, Schedule III, IV, and V drugs, as provided for in subsection
3 A of Section 2-401 of Title 63 of the Oklahoma Statutes;

4 ~~297.~~ 298. Distribution of counterfeit controlled substance,
5 possession with intent, Schedule III, IV, and V drugs, as provided
6 for in subsection A of Section 2-401 of Title 63 of the Oklahoma
7 Statutes;

8 ~~298.~~ 299. Robbery of controlled dangerous substance, as
9 provided for in subsection B of Section 2-403 of Title 63 of the
10 Oklahoma Statutes;

11 ~~299.~~ 300. Distribute or dispense controlled substance without
12 required order form, as provided for in subsection A of Section 2-
13 404 of Title 63 of the Oklahoma Statutes;

14 ~~300.~~ 301. Manufacture, distribute, or dispense controlled
15 substance not authorized by registration, as provided for in
16 subsection A of Section 2-404 of Title 63 of the Oklahoma Statutes;

17 ~~301.~~ 302. Omit, remove, alter, or obliterate symbol required on
18 controlled substance, as provided for in subsection A of Section 2-
19 404 of Title 63 of the Oklahoma Statutes;

20 ~~302.~~ 303. Refuse or fail to make, keep, or furnish required
21 information, as provided for in subsection A of Section 2-404 of
22 Title 63 of the Oklahoma Statutes;

1 ~~303.~~ 304. Refuse entry or inspection of premises with respect
2 to controlled substance, as provided for in subsection A of Section
3 2-404 of Title 63 of the Oklahoma Statutes;

4 ~~304.~~ 305. Maintain place for keeping or selling controlled
5 substance, as provided for in subsection A of Section 2-404 of Title
6 63 of the Oklahoma Statutes;

7 ~~305.~~ 306. Sell, transfer, or provide money transmitter
8 equipment to unlicensed person, second or subsequent offense, as
9 provided for in subsection A of Section 2-503.1d of Title 63 of the
10 Oklahoma Statutes;

11 ~~306.~~ 307. Responsibility of permit holders, as provided for in
12 subsection A of Section 124.8 of Title 63 of the Oklahoma Statutes;

13 ~~307.~~ 308. Purchase or sell body parts for transplantation, as
14 provided for in Section 2200.16A of Title 63 of the Oklahoma
15 Statutes;

16 ~~308.~~ 309. Falsification, forgery, concealment, defacement, or
17 obliteration of document of gift, as provided for in Section
18 2200.17A of Title 63 of the Oklahoma Statutes;

19 ~~309.~~ 310. Unlawful possession of vessel or motor, as provided
20 for in Section 4209 of Title 63 of the Oklahoma Statutes;

21 ~~310.~~ 311. Receive, possess, sell, or dispose of stolen vessel
22 or motor, as provided for in Section 4209.1 of Title 63 of the
23 Oklahoma Statutes;

24

1 ~~311.~~ 312. Remove or alter ID number of vessel, as provided for
2 in subsection B of Section 4209.2 of Title 63 of the Oklahoma
3 Statutes;

4 ~~312.~~ 313. Buy, receive, possess, or dispose of vessel with
5 false ID number with intent to conceal, as provided for in
6 subsection D of Section 4209.2 of Title 63 of the Oklahoma Statutes;

7 ~~313.~~ 314. False statement in application for certificate of
8 title for stolen vehicle, as provided for in Section 4209.3 of Title
9 63 of the Oklahoma Statutes;

10 ~~314.~~ 315. Alteration or forging of vessel certificate of title,
11 as provided for in Section 4209.4 of Title 63 of the Oklahoma
12 Statutes;

13 ~~315.~~ 316. Possess vessel with altered ID number, as provided
14 for in subsection C of Section 4253 of Title 63 of the Oklahoma
15 Statutes;

16 ~~316.~~ 317. Destroying or falsifying checks to the Land Office,
17 as provided for in Section 1026 of Title 64 of the Oklahoma
18 Statutes;

19 ~~317.~~ 318. Prospecting on public lands without permit, as
20 provided for in Section 1094 of Title 64 of the Oklahoma Statutes;

21 ~~318.~~ 319. Business for profit by a member of the Department of
22 Transportation, as provided for in subsection B of Section 304 of
23 Title 66 of the Oklahoma Statutes;

24

1 ~~319.~~ 320. Business for profit by a member of the Department of
2 Transportation, as provided for in subsection B of Section 324 of
3 Title 66 of the Oklahoma Statutes;

4 ~~320.~~ 321. Failure to comply with request for county records, as
5 provided for in Section 83 of Title 67 of the Oklahoma Statutes;

6 ~~321.~~ 322. Refusal to file tax return with intent to defraud, as
7 provided for in Section 240.1 of Title 68 of the Oklahoma Statutes;

8 ~~322.~~ 323. Filing false sales tax report, as provided for in
9 Section 241 of Title 68 of the Oklahoma Statutes;

10 ~~323.~~ 324. Possession of controlled dangerous substances without
11 tax stamp, as provided for in Section 450.8 of Title 68 of the
12 Oklahoma Statutes;

13 ~~324.~~ 325. Remove tax stamp with intent to reuse, as provided
14 for in Section 450.9 of Title 68 of the Oklahoma Statutes;

15 ~~325.~~ 326. Making false oath to report required by Cotton
16 Manufacturers Act, as provided for in Section 2003 of Title 68 of
17 the Oklahoma Statutes;

18 ~~326.~~ 327. File false income tax return with intent to defraud,
19 as provided for in Section 2376 of Title 68 of the Oklahoma
20 Statutes;

21 ~~327.~~ 328. Fraudulent tax receipt by county treasurer, as
22 provided for in Section 2920 of Title 68 of the Oklahoma Statutes;

23 ~~328.~~ 329. False or fraudulent lists of taxable property, as
24 provided for in Section 2945 of Title 68 of the Oklahoma Statutes;

1 ~~329.~~ 330. False application under Oklahoma Quality Jobs Program
2 Act, as provided for in Section 3609 of Title 68 of the Oklahoma
3 Statutes;

4 ~~330.~~ 331. False application under Former Military Facility
5 Development Act, as provided for in Section 3807 of Title 68 of the
6 Oklahoma Statutes;

7 ~~331.~~ 332. False application under Oklahoma Specialized Quality
8 Investment Act, as provided for in Section 4109 of Title 68 of the
9 Oklahoma Statutes;

10 ~~332.~~ 333. False application under Oklahoma Quality Investment
11 Act, as provided for in Section 4209 of Title 68 of the Oklahoma
12 Statutes;

13 ~~333.~~ 334. Conflict of interest by a member of the
14 Transportation Commission, as provided for in Section 310 of Title
15 69 of the Oklahoma Statutes;

16 ~~334.~~ 335. Conflict of interest by a member of the Oklahoma
17 Turnpike Authority, as provided for in Section 1705 of Title 69 of
18 the Oklahoma Statutes;

19 ~~335.~~ 336. Violation of Oklahoma Highway Code of 1968, as
20 provided for in Section 1802 of Title 69 of the Oklahoma Statutes;

21 ~~336.~~ 337. Conflict of interest by Oklahoma Educational
22 Television Authority member, as provided for in Section 23-106 of
23 Title 70 of the Oklahoma Statutes;

1 ~~337.~~ 338. Alter or destroy audit records by Board of Regents,
2 as provided for in subsection E of Section 3909 of Title 70 of the
3 Oklahoma Statutes;

4 ~~338.~~ 339. Authority to receive gifts or funds, as provided for
5 in subsection B of Section 4306 of Title 70 of the Oklahoma
6 Statutes;

7 ~~339.~~ 340. Make takeover offer which is not effective under
8 Oklahoma Take-over Disclosure Act of 1985, as provided for in
9 subsection A of Section 453 of Title 71 of the Oklahoma Statutes;

10 ~~340.~~ 341. Fraudulent, deceptive, or manipulative acts in
11 takeover offer, as provided for in Section 455 of Title 71 of the
12 Oklahoma Statutes;

13 ~~341.~~ 342. Violation of Oklahoma Take-over Disclosure Act of
14 1985, as provided for in Section 460 of Title 71 of the Oklahoma
15 Statutes;

16 ~~342.~~ 343. Conflict of interest by Oklahoma Capitol Improvement
17 Authority member, as provided for in Section 162 of Title 73 of the
18 Oklahoma Statutes;

19 ~~343.~~ 344. Fraud in obtaining certification as a minority
20 business, as provided for in Section 85.45h of Title 74 of the
21 Oklahoma Statutes;

22 ~~344.~~ 345. False statement for small business surety bond
23 guarantee, as provided for in Section 85.47h of Title 74 of the
24 Oklahoma Statutes;

1 ~~345.~~ 346. Forge or alter criminal history record, as provided
2 for in subsection D of Section 150.9 of Title 74 of the Oklahoma
3 Statutes;

4 ~~346.~~ 347. Making or receiving kickback, as provided for in
5 Section 3404 of Title 74 of the Oklahoma Statutes;

6 ~~347.~~ 348. Pooling of bridge or highway contracts, as provided
7 for in Section 101 of Title 79 of the Oklahoma Statutes;

8 ~~348.~~ 349. Business for profit by Oklahoma Water Resources Board
9 member, as provided for in Section 1086.3 of Title 82 of the
10 Oklahoma Statutes;

11 ~~349.~~ 350. Conflict of interest by water district official or
12 employee, as provided for in Section 1281 of Title 82 of the
13 Oklahoma Statutes;

14 ~~350.~~ 351. Falsely executes a written declaration as a witness
15 to a will, as provided for in paragraph 6 of Section 55 of Title 84
16 of the Oklahoma Statutes; and

17 ~~351.~~ 352. False statement and misrepresentation, as provided
18 for in Section 6 of Title 85A of the Oklahoma Statutes.

19 B. Any person convicted of a Class D1 criminal offense set
20 forth in this section shall be punished by imprisonment in the
21 custody of the Department of Corrections for a term ~~of~~ not more than
22 five (5) years and shall serve at least twenty percent (20%) of the
23 sentence imposed before release from custody including release to
24

1 electronic monitoring pursuant to Section 510.9 of Title 57 of the
2 Oklahoma Statutes.

3 C. 1. Every person who, having been previously convicted of
4 ~~one or two~~ a Class C or Class D criminal ~~offenses~~ offense, commits a
5 Class D1 criminal offense shall, upon conviction, be punished by
6 imprisonment in the custody of the Department of Corrections for a
7 term ~~of~~ not less than one (1) year nor more than seven (7) years and
8 shall serve at least twenty percent (20%) of the sentence imposed
9 before release from custody including release to electronic
10 monitoring pursuant to Section 510.9 of Title 57 of the Oklahoma
11 Statutes.

12 2. Every person who, having been previously convicted of three
13 or more Class C or Class D criminal offenses, or one or more Class
14 Y, Class A, or Class B criminal offenses, commits a Class D1
15 criminal offense shall, upon conviction, be punished by imprisonment
16 in the custody of the Department of Corrections for a term ~~of~~ not
17 less than two (2) years nor more than ten (10) years and shall serve
18 at least thirty percent (30%) of the sentence imposed before release
19 from custody including release to electronic monitoring pursuant to
20 Section 510.9 of Title 57 of the Oklahoma Statutes.

21 D. Unless specifically exempted pursuant to subsection E of
22 this section, Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this
23 title shall not apply to Class D1 criminal offenses.

1 E. The criminal offenses listed in paragraphs ~~98~~ 99, ~~108~~ 109,
2 ~~212~~ 213, ~~213~~ 214, and ~~229~~ 230 of subsection A of this section shall
3 be exempt from the penalty provisions provided for in subsections B
4 and C of this section. Persons convicted of the criminal offenses
5 provided for in paragraphs ~~98~~ 99, ~~108~~ 109, ~~212~~ 213, ~~213~~ 214, and ~~229~~
6 230 of subsection A of this section shall be punished in accordance
7 with the corresponding penalties provided for in the Oklahoma
8 Statutes including Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~
9 this title.

10 F. All Class D1 criminal offenses shall be punishable by the
11 corresponding fines as provided for in the Oklahoma Statutes.

12 SECTION 2. AMENDATORY 21 O.S. 2021, Section 264, is
13 amended to read as follows:

14 Section 264. A. Any person who shall without due authority
15 exercise or attempt to exercise the functions of or hold himself or
16 herself out to any one as a federal law enforcement agent or
17 officer, deputy sheriff, state trooper, marshal, police officer,
18 constable or peace officer shall, upon conviction, be guilty of a
19 ~~misdemeanor punishable by imprisonment in the county jail for not~~
20 ~~more than one (1) year, or by a fine not exceeding One Hundred~~
21 ~~Dollars (\$100.00), or by both such fine and imprisonment; provided,~~
22 ~~however~~ Class D1 felony punishable by imprisonment as provided in
23 subsections B through E of Section 20N of this title and by a fine
24 not more than Ten Thousand Dollars (\$10,000.00). ~~However~~, this

1 ~~section~~ subsection shall not be ~~so~~ construed as to prevent private
2 persons from making arrests for felonies or misdemeanors committed
3 in their presence.

4 B. It shall be unlawful for any person to affix on his or her
5 motor vehicle, ~~either temporarily or permanently,~~ any insignia
6 typically used by a law enforcement agency for the purpose of
7 causing any other motor vehicle operator to yield the right-of-way
8 and stop, or which actually causes any other motor vehicle operator
9 to yield the right-of-way and stop, whether intended or not. Any
10 person who violates the provisions of this subsection shall, upon
11 conviction, be guilty of a ~~misdemeanor punishable by imprisonment in~~
12 ~~the county jail for not more than one (1) year, or~~ Class D1 felony
13 punishable by imprisonment as provided in subsections B through E of
14 Section 20N of this title and by a fine not exceeding One Thousand
15 Dollars (\$1,000.00), or by both such fine and imprisonment more than
16 Ten Thousand Dollars (\$10,000.00). The provisions of this
17 subsection shall not apply to vehicles of any fire department, fire
18 patrol, law enforcement vehicles, ambulances, or other authorized
19 emergency vehicles.

20 SECTION 3. AMENDATORY 21 O.S. 2021, Section 1738, as
21 amended by Section 1, Chapter 133, O.S.L. 2023 (21 O.S. Supp. 2025,
22 Section 1738), is amended to read as follows:

23 Section 1738. A. 1. Any commissioned peace officer of this
24 state is authorized to seize any equipment, vehicle, airplane,

1 vessel or any other conveyance that is used in the commission of any
2 armed robbery offense defined in Section 801 of this title, used to
3 facilitate the intentional discharge of any kind of firearm in
4 violation of Section 652 of this title, used in violation of the
5 Trademark Anti-Counterfeiting Act, used in the attempt or commission
6 of any act of burglary in the first or second degree, motor vehicle
7 theft, unauthorized use of a vehicle, obliteration of distinguishing
8 numbers on vehicles or criminal possession of vehicles with altered,
9 removed or obliterated numbers as defined by Sections 1431, 1435,
10 1716, 1719 and 1720 of this title or Sections 4-104 and 4-107 of
11 Title 47 of the Oklahoma Statutes, used in the commission of any
12 arson offense defined in Section 1401, 1402, 1403, 1404 or 1405 of
13 this title, used in holding oneself out as law enforcement personnel
14 as provided for in Section 264 of this title, used in any manner to
15 facilitate or participate in the commission of any human trafficking
16 offense in violation of Section 748 of this title, or used by any
17 defendant when such vehicle or other conveyance is used in any
18 manner by a prostitute, pimp or panderer to facilitate or
19 participate in the commission of any prostitution offense in
20 violation of Sections 1028, 1029 or 1030 of this title; provided,
21 however, that the vehicle or conveyance of a customer or anyone
22 merely procuring the services of a prostitute shall not be included.

23 2. No conveyance used by a person as a common carrier in the
24 transaction of business as a common carrier shall be forfeited under

1 the provisions of this section unless it shall appear that the owner
2 or other person in charge of such conveyance was a consenting party
3 or privy to the unlawful use of the conveyance in violation of this
4 section.

5 3. No conveyance shall be forfeited under the provisions of
6 this section by reason of any act or omission established by the
7 owner thereof to have been committed or omitted without the
8 knowledge or consent of such owner, and if the act is committed by
9 any person other than such owner, the owner shall establish further
10 that the conveyance was unlawfully in the possession of a person
11 other than the owner in violation of the criminal laws of the United
12 States or of any state.

13 B. In addition to the property described in subsection A of
14 this section, the following property is also subject to forfeiture
15 pursuant to this section:

16 1. Property used in the commission of theft of livestock or in
17 any manner to facilitate the theft of livestock;

18 2. The proceeds gained from the commission of theft of
19 livestock;

20 3. Personal property acquired with proceeds gained from the
21 commission of theft of livestock;

22 4. All conveyances, including aircraft, vehicles or vessels,
23 and horses or dogs which are used to transport or in any manner to
24

1 facilitate the transportation for the purpose of the commission of
2 theft of livestock;

3 5. Any items having a counterfeit mark and all property that is
4 owned by or registered to the defendant that is employed or used in
5 connection with any violation of the Trademark Anti-Counterfeiting
6 Act;

7 6. Any weapon possessed, used or available for use in any
8 manner during the commission of a felony within the State of
9 Oklahoma, or any firearm that is possessed by a convicted felon;

10 7. Any police scanner used in violation of Section 1214 of this
11 title;

12 8. Any computer and its components and peripherals, including
13 but not limited to the central processing unit, monitor, keyboard,
14 printers, scanners, software, and hardware, when it is used in the
15 commission of any crime in this state;

16 9. All property used in the commission of, or in any manner to
17 facilitate, a violation of Section 1040.12a of this title;

18 10. All conveyances, including aircraft, vehicles or vessels,
19 monies, coins and currency, or other instrumentality used or
20 intended to be used, in any manner or part, to commit a violation of
21 paragraph 1 of subsection A of Section 1021 of this title, where the
22 victim of the crime is a minor child, subsection B of Section 1021
23 of this title, Section 1021.2 of this title, paragraph 1 of
24

1 subsection A of Section 1111 of this title, or paragraphs 2 and 3 of
2 subsection A of Section 1123 of this title;

3 11. All conveyances, including aircraft, vehicles or vessels,
4 monies, coins and currency, or other instrumentality used in any
5 manner or part, to commit any violation of the provisions set forth
6 in Section 748 of this title;

7 12. Any and all property used in any manner or part to
8 facilitate, participate or further the commission of a human
9 trafficking offense in violation of Section 748 of this title, and
10 all property, including monies, real estate, or any other tangible
11 assets or property of or derived from or used by a prostitute, pimp
12 or panderer in any manner or part to facilitate, participate or
13 further the commission of any prostitution offense in violation of
14 Sections 1028, 1029 or 1030 of this title; provided, however, any
15 monies, real estate or any other tangible asset or property of a
16 customer or anyone merely procuring the services of a prostitute
17 shall not be included;

18 13. Any vehicle, airplane, vessel, or parts of a vehicle whose
19 numbers have been removed, altered or obliterated so as to prevent
20 determination of the true identity or ownership of said property and
21 parts of vehicles which probable cause indicates are stolen but
22 whose true ownership cannot be determined;

23 14. Any and all equipment or instrumentality used in any manner
24 or part to commit any act of catalytic converter theft in violation

1 of subsection B of Section 1435 of this title and any monies, coins,
2 currency, or financial instruments used, derived from or traceable
3 as proceeds from a violation of subsection B of Section 1435 of this
4 title;

5 15. Any and all equipment or instrumentality used in any manner
6 or part to commit any act of copper theft in violation of Section
7 1727 of this title, and any monies, coins, currency, or financial
8 instruments used, derived from or traceable as proceeds from a
9 violation of Section 1727 of this title; and

10 16. Any and all equipment or instrumentality used in any manner
11 or part to commit any violation of the Oklahoma Scrap Metal Dealers
12 Act, and any monies, coins, currency, or financial instruments used
13 or traceable as proceeds from a violation of the Oklahoma Scrap
14 Metal Dealers Act.

15 C. Property described in subsection A or B of this section may
16 be held as evidence until a forfeiture has been declared or a
17 release ordered. Forfeiture actions under this section may be
18 brought by the district attorney in the proper county of venue as
19 petitioner; provided, in the event the district attorney elects not
20 to file such action, or fails to file such action within ninety (90)
21 days of the date of the seizure of such equipment, the property
22 shall be returned to the owner.

23 D. Notice of seizure and intended forfeiture proceeding shall
24 be filed in the office of the clerk of the district court for the

1 county wherein such property is seized and shall be given all owners
2 and parties in interest.

3 E. Notice shall be given according to one of the following
4 methods:

5 1. Upon each owner or party in interest whose right, title, or
6 interest is of record in the Oklahoma Tax Commission or with the
7 county clerk for filings under the Uniform Commercial Code, served
8 in the manner of service of process in civil cases prescribed by
9 Section 2004 of Title 12 of the Oklahoma Statutes;

10 2. Upon each owner or party in interest whose name and address
11 is known, served in the manner of service of process in civil cases
12 prescribed by Section 2004 of Title 12 of the Oklahoma Statutes; or

13 3. Upon all other owners, whose addresses are unknown, but who
14 are believed to have an interest in the property by one publication
15 in a newspaper of general circulation in the county where the
16 seizure was made.

17 F. Within sixty (60) days after the mailing or publication of
18 the notice, the owner of the property and any other party in
19 interest or claimant may file a verified answer and claim to the
20 property described in the notice of seizure and of the intended
21 forfeiture proceeding.

22 G. If at the end of sixty (60) days after the notice has been
23 mailed or published there is no verified answer on file, the court
24

1 shall hear evidence upon the fact of the unlawful use and may order
2 the property forfeited to the state, if such fact is proven.

3 H. If a verified answer is filed, the forfeiture proceeding
4 shall be set for hearing.

5 I. At the hearing the petitioner shall prove by clear and
6 convincing evidence that property was used in the attempt or
7 commission of an act specified in subsection A of this section or is
8 property described in subsection B of this section with knowledge by
9 the owner of the property.

10 J. The claimant of any right, title, or interest in the
11 property may prove the lien, mortgage, or conditional sales contract
12 to be bona fide and that the right, title, or interest created by
13 the document was created without any knowledge or reason to believe
14 that the property was being, or was to be, used for the purpose
15 charged.

16 K. In the event of such proof, the court may order the property
17 released to the bona fide or innocent owner, lien holder, mortgagee,
18 or vendor if the amount due such person is equal to, or in excess
19 of, the value of the property as of the date of the seizure, it
20 being the intention of this section to forfeit only the right,
21 title, or interest of the purchaser, except for items bearing a
22 counterfeit mark or used exclusively to manufacture a counterfeit
23 mark.
24

1 L. If the amount due to such person is less than the value of
2 the property, or if no bona fide claim is established, the property
3 may be forfeited to the state and may be sold pursuant to judgment
4 of the court, as on sale upon execution, and as provided in Section
5 2-508 of Title 63 of the Oklahoma Statutes, except as otherwise
6 provided for by law and for property bearing a counterfeit mark
7 which shall be destroyed.

8 M. Property taken or detained pursuant to this section shall
9 not be replevable, but shall be deemed to be in the custody of the
10 petitioner or in the custody of the law enforcement agency as
11 provided in the Trademark Anti-Counterfeiting Act. Except for
12 property required to be destroyed pursuant to the Trademark Anti-
13 Counterfeiting Act, the petitioner shall release said property to
14 the owner of the property if it is determined that the owner had no
15 knowledge of the illegal use of the property or if there is
16 insufficient evidence to sustain the burden of showing illegal use
17 of such property. If the owner of the property stipulates to the
18 forfeiture and waives the hearing, the petitioner may determine if
19 the value of the property is equal to or less than the outstanding
20 lien. If such lien exceeds the value of the property, the property
21 may be released to the lien holder. Property which has not been
22 released by the petitioner shall be subject to the orders and
23 decrees of the court or the official having jurisdiction thereof.
24

1 N. The petitioner, or the law enforcement agency holding
2 property pursuant to the Trademark Anti-Counterfeiting Act, shall
3 not be held civilly liable for having custody of the seized property
4 or proceeding with a forfeiture action as provided for in this
5 section.

6 O. Attorney fees shall not be assessed against the state or the
7 petitioner for any actions or proceeding pursuant to Section 1701 et
8 seq. of this title.

9 P. The proceeds of the sale of any property shall be
10 distributed as follows, in the order indicated:

11 1. To the bona fide or innocent purchaser, conditional sales
12 vendor, or mortgagee of the property, if any, up to the amount of
13 such person's interest in the property, when the court declaring the
14 forfeiture orders a distribution to such person;

15 2. To the payment of the actual reasonable expenses of
16 preserving the property;

17 3. To the victim of the crime to compensate said victim for any
18 loss incurred as a result of the act for which such property was
19 forfeited; and

20 4. The balance to a revolving fund in the office of the county
21 treasurer of the county wherein the property was seized, to be
22 distributed as follows: one-third (1/3) to the investigating law
23 enforcement agency; one-third (1/3) of said fund to be used and
24 maintained as a revolving fund by the district attorney to be used

1 to defray any lawful expenses of the office of the district
2 attorney; and one-third (1/3) to go to the jail maintenance fund,
3 with a yearly accounting to the board of county commissioners in
4 whose county the fund is established. If the petitioner is not the
5 district attorney, then the one-third (1/3) which would have been
6 designated to that office shall be distributed to the petitioner.
7 Monies distributed to the jail maintenance fund shall be used to pay
8 costs for the storage of such property if such property is ordered
9 released to a bona fide or innocent owner, lien holder, mortgagee,
10 or vendor and if such funds are available in said fund.

11 Q. If the court finds that the property was not used in the
12 attempt or commission of an act specified in subsection A of this
13 section and was not property subject to forfeiture pursuant to
14 subsection B of this section and is not property bearing a
15 counterfeit mark, the court shall order the property released to the
16 owner as the right, title, or interest appears on record in the Tax
17 Commission as of the seizure.

18 R. No vehicle, airplane, or vessel used by a person as a common
19 carrier in the transaction of business as a common carrier shall be
20 forfeited pursuant to the provisions of this section unless it shall
21 be proven that the owner or other person in charge of such
22 conveyance was a consenting party or privy to the attempt or
23 commission of an act specified in subsection A or B of this section.
24 No property shall be forfeited pursuant to the provisions of this

1 section by reason of any act or omission established by the owner
2 thereof to have been committed or omitted without the knowledge or
3 consent of such owner, and by any person other than such owner while
4 such property was unlawfully in the possession of a person other
5 than the owner in violation of the criminal laws of the United
6 States or of any state.

7 S. Whenever any property is forfeited pursuant to this section,
8 the district court having jurisdiction of the proceeding may order
9 that the forfeited property may be retained for its official use by
10 the state, county, or municipal law enforcement agency which seized
11 the property.

12 SECTION 4. This act shall become effective November 1, 2026.

13
14 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
15 OVERSIGHT, dated 04/14/2026 - DO PASS.
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